

CV 14

1749

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

PEGGY MORRIS,

Plaintiff,

- against -

xGLEESON, J.

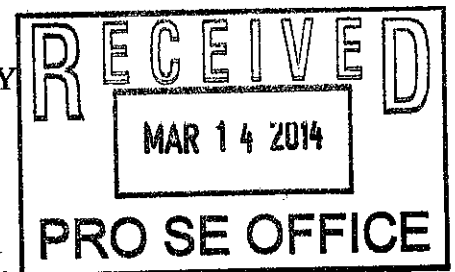
BLOOM, M.J.

COMPLAINT

Jury Trial
Demanded

NEW YORK CITY, POM JP MARCANTONIO (Tax ID # 937020),
Individually and in his Official Capacity, POM TM SKOBLA,
Individually and in his Official Capacity, POM VILLANUEVA,
Individually and in his Official Capacity, SGT JOHN MCCORMICK
(Tax ID # 879122), POM MARTINEZ (Badge # 4874) Individual and in
his Official Capacity, POM KYLE BRADLEY, (Tax ID # 945861),
Individually and in his Official Capacity, DEPUTY INSPECTOR
MILTADIS MARMARA, Individually and in his Official Capacity,
CHIEF PHILLIP BANKS, III, Individually and in his Official Capacity,
LAW OFFICES OF SALAMI-OYAKHILOME, P.C., SADATU O
SALAMI-OYAKHILOME, ESQ., SERENA A. MAY aka SERENA
ANTOINETTE MCCRARY aka SONYA BROWN aka SERENA A.
MCCRARY aka SERINA A. MCCAERY aka SERENA A. MCGRARY
aka TONI MOORE aka TINA L. DUPRY aka SERENA HALLMAN
aka SERENA MCRARY aka SERENA MOORE aka SHELLY
HAIRSTON and aka TONI COLLINS, MCRARY'S JUSTICE
CENTER, DAWNETT SIMPSON aka DAWNETT CLARK, JASON
CLARK, TYBSY PALMER, CARLTON BROWN, FRANK JORDON,
TANYALEE MURRAY, LINDA PIERRE, "JOHN DOE" aka RAGON,
HON. JONATHAN LIPPMAN, HON. FERN FISHER and HON. JOHN
LANDSEN,

Defendants.



x

Plaintiff PEGGY MORRIS, pro se, complaining of the defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 USC §§ 1982, 1983, 1988 for violations of my civil rights, as secured by said statutes and the Constitutions of the State of New York and the United States of America, and 18 USCS § 242, 15 USCS § 1692, and the laws and Constitution of the State of New York including but limited to PL § 175, JL § 487, RPAPL § 853 and DR 1-102(a)(4),(5), and (7)(22NYCRR 1200.3[a][4][5],[7]).

2. The claims arise from members of the New York City Police Department ("NYPD") conspiring amongst themselves and with civilians to effect (a) a false arrest; and (b) an unlawful eviction by virtue of a false arrest. Retaliation drove the unlawful acts complained of herein of both the NYPD and civilian parties. The invidious and abiding contempt the NYPD most commonly hold against persons labeled "tenant/respondent" was enhanced by their sense of retaliation against me for an already pending 42 USC §1983 claim against brethren police officers from the same NYPD 113th Precinct. An arrest was made after two (2) failed attempts to have me committed to a psychiatric ward against my will by making false allegations to Jamaica Hospital Emergency Medical Services workers that I was "emotionally disturbed".

3. The unlawful acts committed by the civilian parties were driven by DAWNETT SIMPSON aka DAWNETT CLARK ("DS Clark) malicious motivation to for retaliate against for filing an ACS complaint, a complaint that was found to be justifiable.

4. Pendent State Claims include the conspiracy between the civilian Defendants LAW OFFICES OF SALAMI-OYAKHILOME and P.C., SALAMI-OYAKHILOME, ESQ. (SALAMI"), SERENA A. MAY aka SERENA ANTOINETTE MCCRARY aka SONYA BROWN AKA SERENA A. MCCRARY aka SERINA A. MCCAERY aka SERENA A. MCGRARY aka TONI MOORE AKA TINA L. DUPRY aka SERENA HALLMAN aka SERENA MCRARY aka SERENA MOORE aka SHELLY HAIRSTON AND aka TONI COLLINS and MCRARY'S JUSTICE CENTER (MAY Defendant"), DS CLARK, JASON CLARK, TYBSY PALMER, CARLTON BROWN, FRANK JORDON, TANYALEE MURRAY ("MURRAY"), LINDA PIERRE ("PIERRE"), "JOHN DOE" aka RAGON ("DOE") to engage in "sewer service", file false affidavits in the pursuit of an unlawful eviction; file false affidavits in support of a criminal prosecution against the Plaintiff and to give false testimony in court proceedings in furtherance of constitutional violations.

JURISDICTION

5. This action is brought pursuant to 42 USC §§ 1982, 1983, 1985 and 1988, 28 USC §§ 1331 and 1334, 15 USC § 1692(k) and 18 USC § § 1961-68, 18 USCS § 242 and supplemental jurisdiction over the state law claims pursuant to 28 USC § 1367, and the First, Fourth, and Fourteenth Amendments to the United States Constitution. Venue is proper in this District pursuant to 28 USC § 1391 and 18 USC § 1965.

6. The jurisdiction of this Court is invoked pursuant to the provisions of: Title 42 USC §1983, providing for the protection of all persons and their civil rights and their address of deprivation of rights under Color of Law; 42 U.S.C. §1985(3), providing for protection from a conspiracy to interfere with a person's civil rights; 28 USC § 1331, which presents a federal question; 28 USC §1343(a)(3), brought to address the deprivation under color of state law of rights, privileges and immunities secured by the Constitution of Laws of the United States. The rights herein sought to be redressed are the rights guaranteed by the due process and equal protection clauses of the Fourteenth Amendment to the Constitution of the United States as hereinafter more fully appears.

NOTICE OF CLAIM

7. With respect to my state law claims, a notice claim was duly filed with the New York City Comptroller's Office within 90 days of my arrest, more than 30 days have elapsed since such filing and no offer of settlement has been made.

JURY DEMAND

8. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed.R. Civ.P. 38(b).

9. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

VENUE

10. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within and the events giving rise to the claim occurred within the boundaries of the Eastern District of New York. Further, this matter is inextricably interwoven to related proceedings currently pending in the Eastern District of New York, Morris v Katz et. al (11-CV-3665) now pending in the United States Court of Appeal for the Second Circuit (12-CV-3143) and Morris v City of New York et. al 12-CV-3959.

PARTIES

11. Plaintiff, PEGGY MORRIS, (Plaintiff) is a Black Female, a citizen of the United States, and at all relevant times resided in Queens County, City and State of New York who, beginning in or about 2007 has been subjected to an ongoing unlawful campaign of persecution at the hands of the New York City Police.

12. Plaintiff's false arrests in 2009 that resulted in a malicious prosecution that lasted about thirteen (13) months, has been followed by a false arrest in August 2013 by officers from the same 113th NYPD Precinct, supported by their superiors, all the while railing about the 2009 arrest and subsequent and pending 2012 lawsuit.

13. Defendant NEW YORK CITY was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, with its central offices located in the County of New York, and diverse other offices and facilities throughout the State of New York.

14. Defendant NEW YORK CITY maintains the NEW YORK CITY POLICE DEPARTMENT, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the Municipal Defendant.

15. That at all times hereinafter mentioned, the individually named defendants JP MARCANTONIO, POM TM SKOBLA, POM VILLANUEVA, SERGEANT JOHN MCCORMICK, POM KYLE BRADLEY, DI MARMARA, CHIEF PHILLIP BANKS, III, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

16. That at all times hereinafter mentioned the NYPD defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

17. Each and all of the acts of the NYPD defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK and acting under the color of law.

18. LAW OFFICES OF SALAMI-OYAKHILOME, P.C. is a professional corporation owned and operated by Sadatu O Salami-Oyakhilome.

19. SALAMI-OYAKHILOME, ESQ. is a licensed attorney who regularly engages in landlord tenant matters in Queens County, New York.

20. DAWNETT SIMPSON aka DAWNETT CLARK a Jamaican born naturalized citizen of the United States of America is the young mother of four children, Timiesha Touzalin (13), Daniel Williams (10), Nyasia Williams (6) and Jayanna Clark (2.5). DS CLARK and her mother were involved in a fraudulent purchase arrangement of a home that is now foreclosed.

21. JASON CLARK, a recent Jamaican immigrant being sponsored by his wife DS CLARK, and father to Jayanna (2.5).

22. MAY allegedly a repeat offender and convicted felon engaged by DS CLARK to

participate in the making and filing a false affidavit of service and Notice of Holdover Petition and Holdover Petition.

23. MCRARY'S JUSTICE CENTER is a business not registered with the New York State Department of State which based on information and belief is operated by MAY, allegedly a repeat offender and convicted felon which is advertised as a bailbond referral and paralegal services company engaged by DS CLARK to participate in a the making and filing of false affidavits of service and false Notice of Holdover Petition and Holdover Petition.

24. TYBSY PALMER a Jamaican born naturalized citizen of the United States of America and mother of DS CLARK. TYBSY PALMER, her daughter DS CLARK were involved in the purchase of a now foreclosed home.

25. CARLTON BROWN an illegal Jamaican alien resides at the foreclosed property in the possession of DS CLARK and her mother which is operated as an illegal boarding house and pays \$600 monthly.

26. FRANK JORDON a Trinidadian alien resides at the foreclosed property in the possession of DS CLARK and her mother which is operated as an illegal boarding house and pays \$500 monthly.

27. MURRAY is DS CLARK's best friend who is also Jamaican born and a veteran of one of the US armed services and resides in Amityville, Suffolk County, New York.

28. PIERRE a residence in zipcode 11411 or 11412, license plate number FMX 4043 is Jayanna Clark's godmother, is of Haitian descent and is between 5'9" - 5'11" tall and weighs over 200 pounds.

29. "JOHN DOE" aka RAGON is PIERRE's boyfriend is an African national and based on information and belief resides with Pierre and her mother and aided and abetted the

CLARKS to intimidate Plaintiff and in an illegal lockout.

30. HON. JONATHAN LIPPMANN is a supervising judge over the New York City Civil Court Queens County.

31. HON. FERN FISHER is a supervising judge over the New York City Civil Court Queens County.

32. HON. JOHN LANDSEN is a supervising judge over the New York City Civil Court Queens County Housing Parts.

FACTUAL BACKGROUND

33. Plaintiff is a life-long community advocate who as of 2005 became a housing specialist focusing on foreclosure and eviction prevention considered as a local expert by many in the housing community, as well as by the local electorate in Southeast Queens as well as by large media outlets.

34. Plaintiff has been subjected to campaign of police misconduct beginning in or about 2007 which include five false arrests, including unlawful searches. A December 14, 2009 resulted in a malicious prosecution that resulted in a dismissal of all charges on January 11, 2011, after which Plaintiff filed a 1983 claim entitled Morris v City of New York et. al. (JG) 12-CV-3959.

35. The 2009 arrests were part of efforts to evict without due process from a Mitchell Lama cooperative unit/premises Plaintiff had occupied for more than nine (9) years. The premises were owned by Rochdale Village, Inc. (ROCHDALE). In or about 2013 I came to know that the NYPD was on ROCHDALE's payroll under the NYPD "Paid Unit Detail" ("PUD").

36. The 2009 false arrests failed to accomplish an eviction, and thereafter

ROCHDALE instituted a holdover and malicious prosecution against me in the Civil Court of New York City, Queens County, Housing Part (Holdover Index Number 57347/2010) accompanied by a campaign of intimidation. As a result of the holdover and malicious prosecution I was evicted on July 25, 2011, and based on violations of my civil rights, as secured by said statutes and the Constitutions of the State of New York and the United States of America I filed Morris v Katz et. al. (JG) 11-CV-3665 now pending in the US Court of Appeals, Second Circuit, 12-CV-3143.

37. A backdrop to all my false arrests included my advocacy to enforce NYPD Patrol Guide Procedure No. 117-11 which reads in part: Illegal Evictions; Police Policy 117-11: *Note: what follows is NYPD Patrol Guide Procedure No. 117-11 setting forth the law and official Police policy regarding the New York City Illegal Eviction Law. We've discovered many officers have never even heard of this law and procedure and worse, once they are made aware, we've heard that some willfully violate it...* and anti-predatory lending laws.

a. I was arrested twice in 2007 protecting a home that a predatory lender was dead set on taking. I would be summonsed to location all hours of the day and night over a six (6) month period to intervene with members of NYPD who were engaged to conspire with and did in fact aid and abet the predatory lender where at times my life was threatened, and at another time a individual who identified himself as an ex-con hired by the predatory lender threatened that he would burn down the house.

b. For some six (6) months calls I made to 311 regarding threatened police misconduct and improper intervention into the situation motivated NYPD supervisors called to the scene to restrain their officers, officers and supervisors on two midnight tours drew guns on me to keep me from calling 311 and effected a staged false arrest designed to deter my

community housing advocacy particularly as it related to the property subject to the 2007 arrests.

c. In or about 2006, by happenchance while standing at the corner of Baisley and Guy R. Brewer (a stone's throw from Rochdale and the 113th Precinct) in blinding rain I ran into a the client, a Ms. Green, who was just leaving the 113th Precinct. Ms. Green advised me that the police had threatened to arrest her that morning if she did not permit two (2) deadbeat female roomers remain in her home.

d. Ms. Green was a hardworking individual who based on the pleas of two "church sisters" extended her home to two (2) young and attractive females who in less than thirty days were acting in concert against Ms. Green. I accompanied Ms. Green back to the 113th Precinct and asked to speak with a Sergeant who ultimately informed that Ms. Green must have been mistaken about being threatened with arrest. So it was agreed that Ms. Green could protect herself, her minor child and her property from two young ladies who had only lived with her for less than thirty (30) days, but that should the second young lady not leave voluntarily, Ms. Green would have to take her to court, which was the plan as of the time Ms. Green first discussed the matter with me in my office. Later that day, I contacted then Deputy Inspector Krystal Johnson to suggest that her officers receive training on NYPD Patrol Guide Procedure No. 117-11, and to ask that she see to it that her officers abide by the law going forward.

e. Also, in or about 2006, a friend contacted asking for my assistance with respect to her cousin who had been illegally lockout in the American Tower at situated at Merrick Boulevard and 110th Road situated within the 103rd Precinct. I dispatched one of my volunteers to the 103rd Precinct who was rebuffed by officers there on duty at the time. Thereafter I presented at the precinct and after a lot of bantering the officers relented and advised me and the young lady first name "Honor" to go to the premises where they would meet me. The

superintendent would not respond to Honor and I, but did yield to the directive by the NYPD that unless they possessed a Warrant of Eviction executed by a NYC Marshal they (the superintendent) would have to open the door which had been nailed shut or be subjected to arrest. Honor was immediately restored to possession of her apartment.

f. Again, in 2006 in a home just four (4) doors down from the house involved in my 2013 arrest, members of the 113th Precinct conspired with a NYC Marshal and agents for a predatory lender of a foreclosure sham to evict a then 87 year old senior citizen twice, and without the benefit of duly issued warrant of eviction. Based on information and belief the first eviction occurred in March 2006, and the front door of the home was illegally removed. The mistake was acknowledged and the door was replaced. In May of 2006 I intervened with the aid of a Deputy Mayor to avert another questionable scheduled eviction of the octogenarian. However, complicated by a lot of family drama the octogenarian was finally illegally evicted in June of 2006. Whereas in evictions, the role of the police is that of peacekeeper, but in the instances I am familiar with, their role has been that of conspirator, primarily to use arrest or the threat of arrest to expedite illegal and/or unlawful evictions.

g. Eventhough I was denied due process which includes predicate notice in housing court, and where proof existed that counterfeit certified mail receipts were created by Rochdale's attorney(s), I was evicted on July 25, 2011. Since being evicted from Rochdale I have uncovered information indicating that members of the NYPD were on Rochdale's payroll. (Also, since being evicted from Rochdale, I have also learned through media reports that banks are also paying some NYPD expenses. As so many others are asking, "What's wrong with this picture?")

h. In August 2011 at a home situated within vicinity of the 113th Precinct I was on the scene when a second NYC Marshal arrived with members of the NYPD in tow to conduct an

illegal and unlawful eviction involving a 91 year old alzheimer patient. I asked for names and badges but was rebuffed and instead threatened with arrest by the police who alleged that I was interfering with the administration of law enforcement. Among other things, by law a NYC Marshal is required to stop an eviction when an elderly or sick adult is observed to be residing at the premises. However, in this case an Emergency Medical Service worker who had arrived after the NYPD and the NYC Marshal firstly carried the 91 year old alzheimer patient's wheelchair out from the second floor of the home, and thereafter carried the 91 year old alzheimer patient downstairs and outdoors as well, plopped the nonagerian in the wheelchair leaning up against a tree situated in front of the home like a piece of garbage. While a locksmith furiously changed the front door lock, members of the NYPD on the scene ranted at 91 year old alzheimer patient's daughter, a lady at least sixty (60) years old who was only visiting and who did not live at the premises, that she had ten (10) minutes to get some things and get out.

i. My unlawful eviction on July 25, 2011 rendered me homeless. Weeks after my unlawful eviction I contacted Defendant DAWNETT SIMPSON CLARK (DS CLARK), with whom I had a working relationship beginning in or about 2006, and asked her permission to layover in the attic apartment in the house she lost to foreclosure but continued to occupy, so that I would place to stay when I was required to be in New York for the purpose of attending court appearances related to 11-CV-3556 and my unlawful eviction Supreme Court actions.

38. I first met DS CLARK and Defendant PALMER in or about 2006 when the two of them sought my assistance to resolve a foreclosure filed against them and the home they occupied and continue to occupy.

39. I moved in with DS CLARK after my unlawful eviction in July 2011 and DS Clark's request that I continue to help protect her and her family from ongoing threats of post-foreclosure eviction.

40. Due to domestic difficulties between DS CLARK and her husband JASON, and her mother's refusal to babysit the DS CLARK's four (4) children, I became an in-house nanny, babysitting, buying and preparing meals for the children. At the time the eldest child, Timiesha was twelve(12) and had recently immigrated from Jamaica, West Indies; while the youngest child, Jayanna was not yet a year old, while the middle two (2) children had been in their mom's care for some five (5) years. As a result of the extended time I spent Jayanna and Timiesha a bond was developed between us that DS CLARK became resentful towards me so much so that in or about May of 2013 all the children were prohibited from interacting with or speaking to me.

41. Thereafter, JAYANNA would cry for me and escape their second floor apartment to attempt to make her way upstairs to the attic. It was my impressions that the methods employed by the family to keep JAYANNA away from me were too extreme, and could ultimately cause her physical harm so on or about June 5, 2013 I filed an abuse complaint with the New York City Administration for Children Services ("ACS").

42. In response to a foil request I filed with ACS, I was advised by letter that their investigation resulted in a finding that abuse as alleged was "indicated".

43. After the June 5, 2013 ACS complaint was filed, DS CLARK and her husband JASON began a campaign to illegally evict me by means of physical assaults, threats of physical assault, intimidation, and petit larceny.

44. As an eviction and foreclosure prevention specialist, I observed time and again Judges in Queens Civil Court and Justices in the Queens Supreme Court disregard the law and legal procedure to the detriment of parties who were most often the respondents in housing court actions and defendants in foreclosure actions. Between 2006 and December 2012 I regularly informed DS CLARK and her husband JASON about the improprieties and "misconduct" I

regularly witnessed occurring in the Queens County Housing and Supreme Courts related to evictions and foreclosure.

45. Additionally, I also shared details of my experience with officers from the 113th Precinct and my 2009 false arrests and malicious prosecution to DS CLARK and her husband JASON.

46. Just as illegal lockout efforts were unleashed against me in 2009 DS CLARK initiated a copy cat eviction effort against me in June 2013, ultimately engaging the cooperation of family, tenants, friends and members of the 113th Precinct.

47. Just as members of the 113th Precinct became co-conspirators in the illegal lockout efforts unleashed against me in 2009 and false arrests in 2007 and 2009, members of the 113th Precinct again effectuated my illegal lockout by arrest in 2013 premises.

48. Part of the conspiracy included the NYPD failure to intervene:

a. On June 3, 2013 DS CLARK chest bumped me while I was holding a plate of hot food causing burns to my wrist. I filed a complaint.

b. On June 5, 2013 my studio apartment door was kicked in and I filed Complaint No. 4695 with a 113th Precinct POM. I filed a complaint.

c. On August 2, 2013 my studio apartment was burglarized. I returned home to find my laptop rendered inoperable, my medications and ten (10) sets of legal documents ready to be served were stolen. I filed a Complaint No. 6457 with a 113th Precinct POM.

49. One of the responding POM's informed that DS Clark had called 911 in recent days alleging that I had stolen checks mailed from the New York City Department of Human Resources as well as her identity. (In response to the false allegations I requested and received copies of the subject HRA checks, and notably DS Clark did not file a lost/stolen check

complaint with HRA.)

50. On August 4, 2013 I appeared at the 113th Precinct and reported the June 3, 2013 chest bump incident and burn incident to POM Kyle Bradley who exclaimed that "these are "Bull S__t complaints". In response to my protest regarding his characterization of the physical assault and threats of physical assault and the kicking in of my door and thefts I was being subjected to date POM Bradley consulted with Sergeant John McCormick, who was in a different room in the 113th Precinct.

51. I overheard Sergeant McCormick yell at POM Bradley advising POM Bradley that "you have to get tough like everyone else and tell those people that you are not going to waste one more piece of paper with these Bull S__t complaints". Thereafter, I moved toward the room where Sergeant McCormick was sitting and again protested their characterization of my complaints as "Bull S__t". Sergeant McCormick then yelled at me to leave his area. Ultimately, he explained that was only joking with his officer.

52. On August 5th and 6th, 2013 my 80 year old mother began to receive threatening calls from telephone number 516-652-3850. Based on information and belief the telephone number belonged to defendant PIERRE (NYS License Plate No. FXM-4043). I complained by letter to DI Marmara, all in vain.

53. On August 6, 2013 at about 7:00 PM Pierre physically restrained me from leaving by blocking the stairwells, while DS Clark and Jason made threats. I called 911 whereby the operator stayed on the line with me until Pierre relented and stepped aside permitting me to pass while the threats continued and during which time Pierre spat on me while I walked down the stairway down from the second floor to the first floor landing. The perpetrators followed me outside where they continued to make threats and heckle me as I walked down the block.

54. On August 6th, 2013 I returned home at about 7:30 PM to observe Jason and Pierre storming down the stairs from the third floor where my studio apartment was situated in the house. Pierre again position herself so as to block my passage from the second floor landing to the stairs leading up to my premises situated on the third floor of the home. I was forced to call 911 once again, and once again the 911 operator stayed on the telephone with me until Pierre relented and stepped aside so that I could access the stairs leading up to the third floor, and I was able to access my premises.

55. I left the premises on August 6th, 2013 at about 7:00 PM returning at about 7:30 PM, during which time a scene was staged whereby a red Disney television ("TV") was positioned at the top of the stairs leading to the second floor landing. Upon my return Jason called 911, but no one responded to the scene.

56. On August 14, 2013 I appeared at the 113th Precinct and asked to speak to DI Marmara who referred me to the Queens County Criminal Court to request an Order of Protection. I informed DI Marmara that based on my legal research on obtaining an Order of Protection, I would not be granted an Order of Protection against a non-family member unless the target had been arrested, as ultimately I was so advised by personnel at the Queens County Criminal Court. Undoubtedly, in order to attempt to appease me, DI Marmara also directed his Community Relations' officers at the 113th Precinct Station to provide with copies of Omniform System Complaint Numbers 6541 and 6547.

57. On August 15, 2013 after being denied an Order of Protection, I returned to the 113th Precinct to deliver a handwritten letter addressed to DI Marmara which citing that based on The People of New York v James Carlson, 705 NYS 830 and The People of New York v Alvino, as well as Penal Code, Title 5, Chapter 22 and NYPD Patrol Guide 214-12 and the

mandate of Queens County Elder Abuse Unit that his officers were mishandling the complaints I had made.

58. On August 16, 2013 I hand delivered another letter to DI Marmara which citing Holloway v Joseph, 10-CV-6470 decided August 10, 2012 as information that the allegations I complained of against the Clarks and Pierre supported their arrest.

59. In or about July 2013 I attended the monthly Community meeting held at the 113th Precinct Station where I met Chief Banks who handed out his business card and advised attendees to contact him personally if they experienced problems that were not being addressed by the 113th Precinct Officers or DI Marmara. As a result of 113th Precinct Officers and DI Marmara relegation of my complaint as "expletive" not worthy of a piece of paper, I began calling Chief Banks on or about August 17, 2013. On or about August 20, 2013 Chief Banks who advised me he had delegated someone to contact me, a contact that never occurred until after my August 22, 2013 false arrest.

60. On August 20, 2013 at about 9:30 PM I was jolted out of my sleep by a loud boom and my door flying ajar. A chain lock fastened across my door from the inside kept the door from flying completely open. I was extremely startled, and went to the door naked and unchained the lock and opened the door to find Jason standing outside my door and the TV lying on the third floor landing in front of Jason and just outside my door. I stared for a moment and thereafter closed and chain locked my door again and went back to bed.

61. Immediately thereafter, within fifteen minutes or so, a person who sounded like Pierre was at my door threatening me, and someone was attempting to break the door down. When the door frame began to give way, I called 911.

62. POM Pena (Badge #13789) and his partner responded. By the time he arrived upstairs to speak to me he had been advised, among other things that I was mentally disturbed. Unbeknowst to me he had already called for Emergency Medical Service responders. Jamaica Hospital Emergency Medical Service responders arrived, questioned me and reviewed my medications and had to contain their laughter at the allegation that I was being treated for some mental condition.

63. By the time POM's arrived, the TV had been re-staged from the position it had sat for more than a week at the top of the stairs leading to the second floor landing to the middle of the second floor landing. The Emergency Medical Service responders left within ten minutes or so and Pena and his partner went back downstairs to the second floor and spent twenty minutes or so with the Clarks in their second floor apartment.

64. Pena returned to the third floor to advise me that the Clarks also accused me of throwing a television down from the third floor at DS Clark, her son Daniel and her best friend MURRAY. Pena stated he did not believe I threw the television and advised me to go to landlord/tenant court, and stated that he had advised the Clarks to do the same, and further stated that the Clarks informed him that landlord/tenant papers had already been filed.

65. On or about August 21, 2013 POM's and Martinez (Badge Number 4874 hispanic female) and Clark (Badge Number 20842 caucasian male) responded to the premises during which time Martinez threatened to arrest me and in fact called Jamaica Hospital Medical Emergency Service and informed the responders that I was a mentally disturbed individual, an allegation that the responders did not find credible.

66. As Martinez continued to act to unlawfully detain and ultimately arrest me, I left the scene and proceeded towards the local Fire Station several blocks away. Apparently

Sergeant Greg Ostrowski (Badge # 4667) also responded to the scene in a van. The collection of officers searched for me and found me about six (6) blocks away where Martinez began to follow me saying her Sergeant wanted to speak with me. At this time I am fearful of Martinez and continue walking. In short order Sergeant Ostrowski encountered me, took up for his officers but returned me to the premises where access was denied.

67. A vacate order to my studio apartment on August 21, 2013 because there was only one means of egress. As a result I was advised that until the condition was remedied I would not be allowed to sleep at the premises. On August 22, 2013 at about 6:00 PM I called 911 and requested a police escort to accompany to the premises in order to pack and retrieve some of my belongings. As escort arrived but left me alone at the premises. After a couple of hours the police were called to the residence again and POM's Skobla and Villanueva responded.

68. POM's Skobla and Villanueva responded and began reciting landlord tenant law that I knew was incorrect, and I so advised the officers, to which both took offense to and began berating me. I immediately called 911 and requested that a Sergeant be dispatched to scene because of the aggressive and inappropriate threats be made against me by Skobla and Villanueva.

69. In short order, another POM rather than a Sergeant as requested arrived on the premises who I mistakenly believed was a Sergeant. I immediately requested their names and badge numbers, and they all refused, so I did not learn that POM Marcantonio was not a Sergeant until I was delivered to the precinct. POM Marcantonio stated I would get all that (names and badge numbers) at the "station". At the premises, POM Marcantonio banged against the door where a Vacate Order was posted and yelled, "can't you read, I am not playing with you, you're under arrest". I responded that I had the right to be at the premises as long as I did not

sleep over at the premises. At this point Marcantonio interjected, "what happened to you at Rochdale"?

70. POM Marcantonio repeated that I was under arrest. I held my arms out and stated, "go ahead, that is what you have been trying to do for a month now anyway". POM Marcantonio then yelled "you are under arrest for throwing the television down the stairs". I responded, "what-what are you talking about"?

71. While being berated by Marcantonio, Skobla and Villanueva search the small studio apartment while Villaneuva made disparaging comments about the condition of the premises.

72. POM Marcantonio was extremely bullish and animated but never included my rights under Miranda in his exclamations.

73. As I was handcuffed and led out of my premises by POM Villanueva and Skobla, I asked who was going to lock up my premises. POM Marcantoni exclaimed, "that's not our problem."

74. POM Villanueva sing-songed their way downstairs singing that he was taking his new best friend to jail as he and Skobla led me outside and place me in the backseat of the squad car.

75. I was detained in handcuffed in the backseat of the squad car for some twenty (20) minutes while Villanueva and Skobla hovered about the car heckling me and Marcantonio and an unknown black male POM I saw for the first time stood about the front stoop of the home questioning DS Clark, her son Daniel, her husband Jason and her mother, Tibsy Palmer while a number of onlookers milled about.

Outside the home, I overheard Marcantonio questioning DS Clark about how often Daniel played with the television, and what was the value of the television.

76. I overheard DS Clark assert that she purchased the television (in or about 2006) for Daniel when Daniel was just three (3) years old and that he played with it every day until I damaged the television (Daniel is now ten (10) years old); and that she paid about \$100 for the TV. (In the criminal proceeding when asked by the Judge after about the third appearance, what was the value of the TV, the ADA willfully and knowing lied and advised the court that the TV was valued at \$500.)

77. The truth is that the TV had been stacked in a corner atop a broken air conditioner as garbage to be discarded for nearly a year prior to August 6, 2013 when it was first staged. Additionally, as a regular babysitter and visitor in the Clark's second floor apartment where I prepared my meals, I knew that no one ever played with the subject TV, least of all Daniel. Daniel possessed handheld game devices and the owned an X-Box and games, which were the only game devices Daniel ever operated in the home.

78. Immediately at the Stationhouse, Marcantonio quickly exclaimed, "it's going to be me and your lawyer" -- "I'm am going to be at court every time there's a court date" .

79. Sergeant McCormick was on duty. As Marcantonio handed him some papers and laid out some of the charges he was alleging, I overheard McCormick inform Marcantonio that I had written letters to DI Marmara and had been in contact with Chief Banks.

80. I was detained in handcuffs chained to a wall in a cold cellroom area at the Stationhouse under false arrest as if I was a criminal for some six (6) hours.

81. On or about August 24, 2013 I discovered that DS Clark had filed a Holdover Petition with the Queens County Housing Court using her maiden name, Simpson v Morris,

Index No. 71424/2013. I also discovered that the Holdover was filed on August 6, 2013, the first date on was August 16, 2013 and that the attached Affidavits of Services alleged that I have been served with a Thirty Day Notice on June 30th.

82. I immediately purchased a certified copy of the holdover papers filed with court, and realized that the most of the contents of the notice of petition, petition and affidavits of service had been falsified and were fraudulent.

a. A Thirty Day Notice had been slipped under my door on (Sunday) July 7, 2013. However, MAY's affidavit falsely alleged that she personally served me with a Thirty Day Notice, again on a Sunday, June 30, 2013. The Notice of Petition and Petition was never served upon in any manner, lawfully or otherwise, and therefore the related Affidavit of Service is a violation of Penal Law 175.

83. At all times during the events described above, police officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights. Individual officers assisted each other and the civilian protagonists in performing the various described conduct lending their physical presence and support and the authority of their office to each other during the said events in order to accomplish a false arrest in furtherance of unlawful ends.

84. Despite knowing that DS Clark in particular was a person of known vicious and malicious propensities, police officers willfully embraced and incorporated her patently incredible allegations to serve as the basis for making a false arrest. Police officers, POM Marcantonio and Sergeant McCormick, in particular, played *eeny- meeny- miny- moe* with what to charge me. Until POM Marcantoni learned that it was officers from the 113th Precinct who originally gave me access and accompanied me to my premises on August 22, 2013, he said I was being arrested for violating a vacate order. In response to my protest he converted his

charge to those related to allegedly throwing a TV (while still at the premises), and (at the precinct) I overheard the charges being changed again after Sergeant McCormick advised him that I had been in contact with both DI Marmara and Chief Banks. Sergeant McCormick had previously characterized the DS Clark's complaint as "expletive", and the officers who first heard the TV allegations found the same allegations were not believable, and additional allegations made by the civilian who walked into the police station and filed complaints that again were not believed.

85. Not only were DS Clark's allegations unbelievable based on the police officers' knowledge of her established pattern of making and filing unbelievable and false complaints against me, but the configuration of the stairs and landings defied the civilian complainants' made-up description of the TV throwing incident, and the police officers only took false statements and failed to take any pictures. I had taken pictures after the civilian parties staged the scene on August 6, 2013.

86. Additionally, all three 911 calls made for police assistance on the day of my false arrest were made by me and not the civilian defendants.

87. Defendants MAY and MCRARY'S JUSTICE CENTER, and DS CLARK conspired to and engaged in "sewer service" - failing to serve a Thirty Day Notice and Notice of Holdover Petition and Holdover Petition and then filing fraudulent affidavits of service for same, and thereafter providing additional false testimony to the court.

88. Defendants LAW OFFICES OF SALAMI-OYAKHILOME, P.C., SADATU O SALAMI-OYAKHILOME, ESQ. and DAWNETT SIMPSON aka DAWNETT CLARK conspired to and engaged in "sewer service" - failing to serve notice of an Order To Show Cause to Vacate of Judgment rendered in my favor affirming that I suffered an illegal lockout on

August 20, 2013, and failing to serve notice a second time when ordered by the presiding Judge to re-serve the Order To Show Cause in the Illegal Lockout Proceeding entitled Peggy Morris v Dawnett Simpson Clark et. al, Index No. 12631/2013 (QC). Both DS CLARK and SALAMI-OYAKHILOME provided false testimony to the court on all the appearance dates, known and unknown to me, alleging among other things that:

- a. DS Clark had properly served me in the holdover; and
- b. I was properly served in the illegal lockout matter when in fact I was never properly by SALAMI-OYAKHILOME and/or her office.

FIRST CLAIM FOR RELIEF
Deprivation of Federal Rights Under 42 USC §1983

89. Plaintiff reiterates and realleges each and every allegation contained in ¶¶ “1” through “88” with the same force and effect as if fully set forth herein.

90. That by the aforesaid violations, acts of commission and omissions of Defendant police department members, in their individual and official capacity as officers/employees of Defendants in a manner to prevent Plaintiff from obtaining the benefits to which she is entitled to under the law and from seeking equal protection of the laws, and from enjoying the equal protection, privileges and immunities of citizens under the Constitution and Laws of the United States and the State of New York including but not limited to enjoy her right to freedoms of speech, movement, association and assembly, to petition her government for redress of her grievances, to be secure in her person, to be free from unreasonable searches and seizures, to enjoy privacy, to be free from slavery and deprivation of life, liberty and property without due process of law.

91. Pursuant to this conspiracy, Defendant police officers acted to deprive Plaintiff of her civil rights by virtue of her illegal arrest, confinement, and subsequent prosecution.

92. The police officer proclaimed zealot with the support of his superior fabricated evidence and causing me to suffers constitutional violation by an (1) investigating official who (2) fabricated evidence (3) intended and that was likely to influence a jury's decision, (4) forwarded that information to prosecutors, and (5) the I suffered a deprivation of liberty as a result.

93. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

94. All of the aforementioned acts deprived me of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth and Fourteenth Amendments to the Constitution of the United States of American in violation of 42 USC §§1983 and 1985.

95. Defendants Marcantonio and McCormick participated in the subject conspiracy through their continued participation in the prosecution of Plaintiff, as well as his failure to investigate whether a crime was committed in the first place. Despite awareness that Defendants involved in making the false TV allegations were patently incredible Defendants Marcantonio and McCormick filed and/or authorized that I be processed for arraignment, and Defendants Marcantonio vowed to zealously support an indictment and malicious prosecution against me without any probable cause.

96. All my letters, complaints and pleas for police assistance, including those made to Sergeant McCormick, DI Marmara and Chief Banks, all fell on deaf ears.

97. While all law enforcement officers have an affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence, there were many opportunity for my false arrest to be corrected prior to

arraignment. However, there was a failure to intervene, and no officer intervened to prevent harm caused me particularly by Marcantonio, Skobla and Villanueva, actions observed, or actions where there was reason to know, that I was been unjustifiably arrested or being subjected to other constitutional violations.

98. Just as in 2009 when POM Dameron of the 113th precinct was encouraged and/or allowed to conspire with complaining witnesses to fabricate and file false statements that were sworn under the pains and penalty of perjury alleging that Plaintiff had committed crimes in order that Office of the District Attorney would arraign, pursue and indictment and maliciously prosecution this Plaintiff, POM Marcantonio willingly entered into the 2013 conspiracy against me, in part to validate the wrongful acts of committed against me by the 113th precinct and my 2009 false arrest.

99. Acting under color of law and pursuant to official policy or custom, Defendants City and named NYPD personnel knowingly, recklessly, or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis Defendants police officers, respectively, in their duties to refrain from:

- a. unlawfully and maliciously harassing a citizen who was acting in accordance with her constitutional and statutory rights, privileges, and immunities;
- b. unlawfully and maliciously arresting, imprisoning and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- c. conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the constitution and laws of the United States of America and the common law of the State of New York; and
- d. otherwise depriving Plaintiff of her constitutional and statutory rights, privileges

and immunities.

100. Based on the statements referencing “ROCHDALE” made in particular by POM’s Marcantonio, Skobla and Villanueva the conspiracy’s retaliatory purpose was made apparent.

101. Defendants City and named NYPD personnel had knowledge, or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendants City and named NYPD personnel had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

102. Defendants City and named NYPD personnel directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of Defendant officers heretofore described.

103. Further, Defendants here violated Plaintiff’s right to be free from illegal searches and seizures, as the effectuated arrest of Plaintiff was without probable cause and no reasonably trustworthy information sufficient to warrant a person of reasonable caution in the belief that an offense was committed by Plaintiff.

SECOND CLAIM FOR RELIEF: MUNICIPAL LIABILITY

104. Plaintiff reiterates and realleges each and every allegation contained in ¶¶ “89” through “103” with same force and effect as if fully set forth herein.

105. The Municipal Defendant is liable for the damages I have suffered as a result of the conduct of their employees, agents, and servants, in that, after learning of their employee’s violation of plaintiff’s constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or

custom to continue, and they have been grossly negligent in managing subordinates who caused the unlawful conditions or events.

106. The City has been alerted to the regular improper training of its officer with respect to matters sounding in landlord tenant and false arrests and threats of false arrests by it police officer, particularly officers in the 113th precinct, but has nevertheless exhibited deliberate indifference to same; and that deliberate indifference has yet again resulted in the violation of my rights in this case.

107. As recounted herein, the aforesaid event is not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with Civilian Complaint Review Board, Internal Affairs, and judicial rulings that a disturbing number of police officers are ill-trained and competent in landlord tenant related matters.

108. In fact, on the last occasion officers including POM Pena accompanied me pursuant to an access order given by a criminal court judge the officer made ludicrous legal claims regarding Landlord Tenant Laws, including but not limited to the fact that he stated that the law of New York City was that it was illegal to rent a room. He berated with his version of the law until I stated that "a judge" had informed that it was not a police officer duty to give legal advice after which POM Pena calmed the officer. Thereafter the officer was silent for about the next thirty (30) minutes while I gathered papers and winter garments.

109. The municipal's response to lack of training and improper supervision is to mount more aggressive legal defenses on behalf of their police officers.

110. All of the aforementioned acts deprived me of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteen Amendments to the Constitution of the United States of America, and in violation of 42 USC §

1983.

Deprivation of Federal Rights Under 42 USC §1983: Judicial Liability

111. Plaintiff reiterates and realleges each and every allegation contained in ¶¶ "104" through "110" with same force and effect as if fully set forth herein.

112. JONATHAN LIPPMAN, FERN FISHER and JOHN LANDSEN supervise the Civil Court Housing Parts ("CCHP") and in my experience over the course of the last ten years despite forums and complaint regarding the pattern and practices of a willful failure to abide by the laws and rules of due process and to accord due process to respondents named and unnamed in petitions in the CCHP. The rote supervisory response to the pattern and practice of denying due process to respondents improperly or not called at all before the CCHP is that "we can't interfere in a court proceeding".

113. Without the support and indifference to the elements of fraud upon the court the rampant filing of "sewer service" affidavits of service, there would not be a ripe and inviting ground for the unlawful filing and unlawful prosecution and/of defense of the CCHP petitions related to this action.

114. Section 42 USC 1982 protects the right of citizens to "hold" real and personal property. It states as recited in *US v Brown*, 49 F3d 1162 (1995):

"All citizens of the United States shall have the same right, in every State and Territory, as is enjoyed by white citizens thereof to inherit, purchase, lease, sell, hold, and convey real and personal property. Section 1982 was enacted to enable Congress to enforce the Thirteenth Amendment, specifically to "prohibit all racial discrimination, private and public, in the sale and rental of property." *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409, 437, 88 S.Ct. 2186, 2202, 20 L.Ed.2d 1189 (1968). In *Jones*, the court looked to the legislative history of Section 1982 — the debates surrounding the Civil Rights Act of 1866 — and explained that Section 1982 was intended to do more than destroy the discrimination embodied by the Black Codes: "It would affirmatively secure for all men, ... the 'great fundamental rights.'" *Id.* at 432, 88 S. Ct. at 2199 (quoting Cong. Globe, 39th Cong., 1st Sess., 475). Included among these "basic civil rights" were the right to acquire property and the right "to go and come at pleasure." *Id.* In passing the Civil Rights

Act of 1866, Congress assumed "that it was approving a comprehensive statute forbidding *all* racial discrimination affecting the basic civil rights enumerated in the Act." *Id.* at 435, 88 S.Ct. at 2201. ... Thus, the court concluded that the "use" of property is a protected civil right. ... *Greer* is not alone in finding that property rights other than ownership are protected by Section 1982. ... The Second Circuit has held that guest status is an interest which Section 1982 may protect. In *Olzman v. Lake Hills Swim Club, Inc.*, 495 F.2d 1333, 1337-38 (2d Cir.1974), a private swim club changed its rules for allowing guests, so that non-member black children would no longer be permitted at the pool. The Second Circuit found that "[w]hile the condition of being a guest is not normally considered a 'property' right one can 'hold,' there is authority and justification for considering it such under [Section] 1982." *Id.* at 1339 (emphasis added). Further, the court concluded that it was reasonable to characterize the freedom to go and come as guests as "sufficiently pertaining to a condition of property to be a right capable of being held under [Section] 1982." *Id.*

115. My right to due process is under attack by CCHP and those who have the authority and responsibility to direct the lawful administration of the legal operations at CCHP, and as such the unlawful acts of the civilian Defendants have been supported and validated by Lippmann, Fisher and Landsen not only as to my right to due process but also to my constitutional right to "use" property.

116. Further defendants actions deprived my first amendment right to speak out as a citizen regarding matters of extreme public concern, namely widespread corruption and illegal practices by the very same individuals sworn to protect the public at large.

117. The pattern and practice of denying due process most often to tenant/respondents as endorsed by Lippmann, Fisher and Landsen makes for ripe partnership between the CCHP and related personnel for individuals such as the Defendant hereto intent on committing constitutional violations under the color of law.

THIRD CLAIM FOR RELIEF: PENDENT STATE CLAIMS

118. Plaintiff reiterates and realleges each and every allegation contained in ¶¶ "111" through "117" with same force and effect as if fully set forth herein.

119. Between June and August of 2013 the NYPD and Civilian Defendants found a symbiosis working together to effectuate my arrest as a strategic move to aid and abet each other to attain retaliatory benefits and/or to thwart and/or punish me for sets of complaints I filed or was filing that these Defendants were being subjected to.

120. The NYPD Defendants wanted to thwart a pending 1983 lawsuit and recent written complaints made with DI Marmara and Chief Banks, while the civilians was looking for retribution for an ACS complaint filed against the Clarks. As a result of the aforesaid conduct by Defendants police officers and civilians DS Clark and Murray, I was subjected to illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

121. The conspiracy entered into by and between the Civilian and NYPD Defendants collectively, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the municipal authority of the City of New York, which is forbidden by the Constitution of the United States, and more specifically violates 42 USC §§ 1982 and 1985.

122. In addition with the symbiosis the Civilian Defendants struck with the NYPD and the physical threats detailed herein above, the Defendants who occupied the subject property the DS and JASON CLARK, TYBSY PALMER, CARLTON BROWN, and FRANK JORDON began an illegal lockout campaign against me that included denying me access to both the first and second floor kitchens.

123. MAYS and DS Clark also filed fraudulent holdover petition as described above.

124. The SALAMI conspired with DS Clark and Tanyalee Murray to efforts to unlawfully evict me by filing false Affidavits of Service and providing false and misleading

statements to the court.

125. SALAMI false filings with and misrepresentations to the court constitutes legal malpractice pursuant to and PL § 175.00 – 175.35 and JL § 487.

126. SALAMI acted individually and in concert to devise and participate in illegal and unlawful schemes, including the making and presentation of false instruments, to deceive the lower court as service, and to the ownership and possession of the premises.

127. SALAMI representation in housing court is also subject to 15 USCS § 1692 to which SALAMI acted individually and in concert to devise and participate in illegal and unlawful schemes, including the making and presentation of false instruments intended to deceive the lower court including but not limited to an abuse of process and other acts of harassment and abuse in violation of 15 USCS § 1692(d).

FIRST AMENDMENT VIOLATION

128. Plaintiff reiterates and realleges each and every allegation contained in ¶¶ “118” through “127” with same force and effect as if fully set forth herein.

129. In the above interactions with police personnel threats of arrest were always threatened in order to silence my speaking up and advocating for my property rights for myself and others.

130. During court proceedings I would be routinely silenced when I spoke out about due process and the court’s lack of jurisdiction when due process had not been practiced by petitioners or the courts, as tapes of several proceedings will confirm.

131. The aforementioned conduct resulted in a chilling effect on my willingness to speak up as a citizen on any number of issues that would offend police officers and those who use and rely on the courts to enable and verify nefarious conduct.

WHEREFORE, plaintiff demands the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs; and
- d. Such other and further relief as the Court may deem just and proper.

DATED: Queens, New York
March 11, 2014

Yours etc.,



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